

CORRECT REISSUE DUE TO ERROR IN THE MEETING DATE

Athens, 10/11/2023

Protocol No.: 2843

DECISION 34/2023

(Section)

The Hellenic Data Protection Authority convened at the invitation of its President in a teleconference meeting on Wednesday, 19-07-2023, at 10 a.m., in order to examine the case referred to in the background of this document. Present were the Deputy President of the Authority, Georgios Batzalexis, due to the absence of the President of the Authority Konstantinos Menoudakos, and the alternate members of the Authority, Demosthenes Bougioukas in place of the regular member Konstantinos Lamprinoudakis, who, although duly summoned in writing, did not attend due to a conflict, and Maria Psalla. The regular member of the Authority Grigoris Tsolias was also present as the rapporteur. Present without voting rights were Stefania Plota, special scientist-lawyer, as assistant rapporteur, and Irini Papageorgopoulou, employee of the administrative affairs department of the Authority, as secretary.

The Authority took into account the following:

A complaint was submitted to the Authority by A (hereinafter "complainant") under protocol number G/EIS/7661/09-11-2020 against the company Piraeus Leasing Financial Leases S.A. (hereinafter "Piraeus Leasing") and a complaint of the same content under protocol number G/EIS/7663/09-11-2020 against the company CPB Leasing Anonymous Company of Financial Leases (hereinafter "CPB Leasing") for illegal processing of personal data concerning him and failure to satisfy the right of access. It is noted that the complainant, in addition to the above complaints, which are also the subject of the present discussion of the Section, had submitted to the Authority the complaints under protocol numbers G/EIS/5551/10-08-2020 and G/EIS/5564/10-08-2020, identical complaints against the same companies respectively for posting on the website of Piraeus Leasing an advertisement for the purchase, rental, financial lease of a property owned by CPB Leasing, in which advertisement there was a photograph of a car owned by the complainant parked next to the property that previously belonged to his father before being seized by the second complained party. The collection, retention in a file, and subsequent transmission of the photograph was carried out by CPB Leasing, as the complainant alleged, and Piraeus Leasing posted the photograph on its website. The complainant stated that the license plate of his car was clearly visible, resulting in his social circle becoming aware of the loss of his family property, a reason for which the complainant and his father have been in a long-standing legal dispute with the second complained party. The complainant submitted a request for objection and deletion of the personal data concerning him, namely the license plate number of his car, as shown on the relevant plate, to the Data Protection Officer of Piraeus Leasing, who responded on ... that from the examination of the photograph in question, it appears that the license plate number of his car is not discernible, and to alleviate any concerns, the photograph has already been removed from the website of Piraeus Leasing and that the photograph will remain in the company's records as proof of the fact that the license plate number of the car is not discernible. The Authority archived the two complaints as: "vague because they were submitted without basic documentation of the claims: From what is mentioned, there is no indication of the occurrence of factual events that would constitute a violation of the personal data legislation falling within the scope of the GDPR (Article 2) and Law 4624/2019. Regarding the disputed photograph submitted to the Authority as the file "advertisement photograph with the car.png", and after magnification, the license plate number of the said car is not discernible.", "without object: Following the investigation of the electronic link provided by the complainant in the request that has...

submits to the reported companies for the removal of the contentious photograph, the said post is not

found (see also the relevant response from the Data Protection Officer regarding the removal of the said photograph from the company's website).”, and “as not falling within the scope of the legislation on the protection of personal data and/or within the jurisdiction of the Authority: Regarding the possible infringement of personality rights, for which the complainant is protesting, the competent courts are responsible.” Subsequently, the complainant returned on ... submitting to the Authority the complaints under examination, adding to the aforementioned that an acquaintance of his “shared email(s) with him, which he had exchanged with Piraeus Leasing, after expressing interest in the property, in which photographs of the said property were shared with him, including the photograph that had been posted in the advertisement, but in much better resolution, resulting in the license plate number of his car being clearly visible, as he states.” The complainant provided an email, which contained the contentious photograph of his father's property, next to which was the complainant's car with the license plate number distinctly visible and stated that the said photograph had been sent via email by Piraeus Real Estate S.A. on ... to a prospective buyer with the email address ... who happened to be an acquaintance of the complainant. From the said file, it appears that on ... the said photograph was forwarded by ... to the complainant's email ... and after a period of 9 months, on ... it was forwarded by ... to ..., with the comments “...is B's car not this?...Isn't this the house of his father? Huge!!! What's going on? Did they lose it in the end?...” to then be sent by ... to the complainant with the comment “Take a look at what G ... sent me until ... your grace reached...”. Subsequently, on ... he submitted supplementary information, stating that he submitted a request on ... to obtain his personal data held in the records of the two reported companies and with surprise, as he states, he found that the contentious photograph they held in their records was not included in what he received, which he reiterates in the email he sent to the Authority as a supplement on ..., adding that his stepmother is ... and for this reason, his data should receive special treatment. The Authority, in the context of examining the above complaint, initially sent to Piraeus Leasing Financial Leases S.A. the document no. Γ/ΕΞ/578/08-02-2021 requesting opinions, to which it responded with document no. Γ/ΕΙΣ/1295/23-12-2021 stating that: i. in response to the Authority's question of whether Piraeus Leasing has absorbed CPB Leasing S.A., against which one of the complaints was submitted, it stated that “the companies PIRAEUS LEASING FINANCIAL LEASES S.A. and PIRAEUS FINANCIAL LEASING FINANCIAL LEASES M.A.E. (as CPB LEASING ANONYMOUS COMPANY OF FINANCIAL LEASES was renamed) are 100% subsidiaries of the Piraeus Bank Group and constitute independent legal entities. The aforementioned leasing companies, co-located and managed by Boards of Directors with common members, for the purpose of more effective management of issues related to their business activity, have chosen to post all advertisements and photographs of movable and immovable properties for sale/lease owned by them on the website of one of them, namely PIRAEUS LEASING.” ii. The complainant has also filed a lawsuit on ... against both leasing companies claiming violation of his personal data as stated in his complaint to the Authority. iii. The vehicle's license plate number is not discernible to the naked eye nor with the use of a magnifying glass and therefore, with the posting of the photograph on their company's website, the personal data of the complainant were not violated. iv. In response to the complainant's request for deletion, the company stated that although the number is not discernible, the photograph was removed from the website with the clarification that it would remain in their records to prove the company's claim. v. Regarding the reference in the complainant's email of ... to the Authority that Piraeus Financial Leasing M.A.E. (formerly CPB) did not respond to his request of ... for copies of his personal data, Piraeus Leasing responds that according to the complainant's email of ... to the Authority, which attaches the email of Piraeus Financial Leasing M.A.E. (formerly CPB) dated ..., the latter responded.

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Appropriately, the reason the photograph was not provided to the complainant is that it does not contain any of his personal data since the license plate number is not discernible. vi. The attempted correlation by the complainant of the location of the property with the nearby parked vehicle cannot lead to the identification of the vehicle's owner, as the said property has been owned by Piraeus Financial Leasing MAE (formerly CBP) since 2007. vii. Regarding the complainant's claim that Piraeus Leasing sent an email to an acquaintance containing the photograph where the license plate number is

visible, it is noted that the email address of the sender does not belong to the two complained leasing companies, in the records of which only the photograph that was posted on the relevant website is kept. Indeed, the email address of the sender/employee is "...", whose domain name belongs to Piraeus Real Estate S.A. Subsequently, the complainant, having received the aforementioned response from Piraeus Leasing to the Authority, sent the supplementary document with reference number Γ/ΕΙΣ/2520/13-04-2021 in which he stated that in the context of submitting proposals regarding a lawsuit he has filed in the Multi-Member Court of First Instance of Athens, "their claim in (e) that the email address of the sender does not belong to the leasing companies is of no concern since it is clear that the photograph was taken unlawfully and without any permission on the day of the execution and at the time we were emptying our house from the Leasing which was carrying out the 'eviction' and subsequently circulated it throughout the Piraeus group until it became known to us when it was eventually sent to an acquaintance of mine by Ms. D with a copy to Mr. E, whose email addresses, as we have already provided, belong to Piraeus Real Estate S.A. - Piraeus Bank Group and who respond on behalf of Piraeus Leasing as they also provide the link to the property in their response to Mr. ST. Regarding the photograph that they audaciously claim does not show my license plates and for the same reason did not provide it to me along with my other personal data as I had requested, I do not need to make any characterization. You understand their character and their ethics."

Subsequently, the Authority, with document number Γ/ΕΞ/2723/27-10-2022, forwarded to Piraeus Financial Leasing Financial Leases S.A. (formerly CPB Leasing Anonymous Company of Financial Leases) the complaint number Γ/ΕΙΣ/7663/09-11-2020 of the complainant, as well as the correspondence that had taken place between the Authority and the company Piraeus Leasing Financial Leases S.A., as in it the latter referred to CPB Leasing on matters concerning it. The company Piraeus Financial Leases Single-Member S.A. – Piraeus Leasing M.A.E. with its document number Γ/ΕΙΣ/11463/01-11-2022, as the Beneficiary with the Establishment company that entered into ... by universal succession in the pending cases of the two complained companies [Piraeus Financial Leasing (formerly CBP) and Piraeus Leasing], which ceased to exist, responded that: i. given that the two complaints of Mr. A against the two companies are identical in content and subject, the statements made in reference numbers Γ/ΕΙΣ/1295/23-02-2021 and Γ/ΕΙΣ/6408/04-10-2021 (reference numbers Piraeus ... and ...) responses, to which they refer, as well as their accompanying documents, which are all attached to the company's response, are valid, ii. additionally, it submits the contract dated ... between CBP Leasing and Piraeus Real Estate (from the email address of which the contentious email was sent) under which the former had entrusted the latter with management and promotion services for the sale/rental of its properties, including the property of the advertisement with code ..., iii. it reiterates that there is no photograph in the records of Piraeus Financial Leases MAE that contains personal data of the complainant but the photograph that was posted on the Piraeus Leasing website, in which the license plate number of the complainant's vehicle is not discernible, is still kept. Finally, the Authority, with document number Γ/ΕΞ/2930/18-11-2022, informed the company Piraeus Real Estate ex officio about the two complaints and forwarded to it the email that had been sent from an email address of the company. The company Piraeus Real Estate, with document number Γ/ΕΙΣ/273/16-01-2023, responded that i. the file containing the contentious photograph was sent to Piraeus Real Estate by CPB Leasing Anonymous Company of Financial Leases, ii. the legal basis for the processing of the ...

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Due to the file, the legitimate interests of the Piraeus Bank Group, to which the aforementioned companies belong, are provided, concerning the optimal management and utilization of the real estate owned by Piraeus Bank and its subsidiaries, given that Piraeus Real Estate has been the executive arm of the Piraeus Bank Group regarding the provision of services on all real estate matters. iii. The company Piraeus Real Estate has no relation to the complainant. iv. The company Piraeus Real Estate has deleted the specific photograph from its records and does not possess any related evidence concerning the case.

Following the examination of the file's elements, the Authority, with relevant summonses, invited i. the complainant, A, ii. the company Piraeus Financial Leasing Single Member S.A., as the universal

successor of the complained companies Piraeus Leasing Financial Leasing Single Member S.A. and Piraeus Financial Leasing Financial Leasing Single Member S.A., which has absorbed the initially complained CBP Leasing S.A. Financial Leasing Company, and iii. the company Piraeus Real Estate M.A.E., as legally represented, to attend the meeting of the Authority's Department on ..., in order to discuss the complaint in question. At this meeting, representatives from Piraeus Financial Leasing Single Member S.A. included Z, Director of Legal Services, H, Managing Director, and Θ, Data Protection Officer, while from Piraeus Real Estate M.A.E. I, Director of Legal Affairs, and K, Data Protection Officer, were present, along with the complainant A and his attorney Nikolaos Diamantopoulos (AMDSA ...).

The parties, after orally presenting their views, were given a deadline during this meeting to submit written statements, which they submitted in a timely manner. During the aforementioned discussion of the case and with reference to the document no. Γ/ΕΙΣ/1920/15-03-2023 following the hearing of his memorandum, the complainant stated, among other things he had initially claimed, that although the companies had initially declared - and to the Authority - that they did not retain any photograph clearly showing the license plate of his vehicle, they later claimed that there indeed was a photograph, which was circulated by mistake, and it is proven that they have committed the violation of "the non-cooperative company, as well as the violation of the duty of truth and the code of ethics, which is mandatory for a financial institution." Regarding the fact that the companies had the photograph in their records, the complainant states that this constitutes illegal collection and storage, illegal circulation within the Piraeus Group and to an unknown number of recipients via email, and illegal retention in their records and refusal to hand it over to him, while they should have been particularly careful with their dealings concerning the said property, due to the ongoing dispute for ... years with his father. Additionally, the complainant mentioned that throughout Attica, there are only ... cars for sale like his - he provides a copy from the website "car.gr" - and apart from his very close circle of 4-5 people, no one else would know about his family's financial ruin if the controversial photograph had not leaked. Finally, he emphasizes that he never gave his consent for the said illegal processing, which was not necessary for the purposes of the legitimate interests of the Group and that none of the other conditions of Article 6 GDPR apply, while the principle of legality is violated, as well as the principle of purpose limitation, since it is possible to ascertain his identity through the license plate number of his vehicle, as the plates associated with a specific owner constitute personal data of the owner.

The company Piraeus Financial Leasing, with document no. Γ/ΕΙΣ/1906/14-03-2023, after the hearing of its memorandum, reiterated all positions and claims included in the previous documents submitted to the Authority, and after reiterating regarding the ownership status of the property, stated that it belongs to Piraeus Financial Leasing M.A.E. since June ... with a purchase from ..., to which it was leased financially, adding that the contract no. ... for financial leasing was terminated on ... due to the lessee's default in payment of the owed rents, and on ... CPB Leasing S.A. proceeded with the eviction of ... from the use of the leased property, where, upon completion of the enforcement process, photographs of the interior and exterior of the property were taken.

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of the property from CPB Leasing S.A. in order for the necessary material to be subsequently forwarded to the company Piraeus Real Estate - which was sent exclusively and solely to it and to no other natural or legal person - that provides services on matters of management and utilization of the real estate of the companies of the Piraeus Group. The company stated that the complainant acknowledged before the Authority that in the photograph posted on the website of Piraeus Leasing, not all digits of the license plate number are discernible and that it pointed out in rebuttal to the complainant regarding the rarity of the car model that regardless of whether a model is rare or not, the brand of a car does not constitute personal data and therefore does not constitute an element of identification of data subjects. Furthermore, the company noted that following the response to the complainant's deletion request, the companies Piraeus Leasing and Piraeus Financial Leasing conducted a review of the photographs in their files related to the said property and identified the photograph depicting the car with the license plate clearly visible, which was immediately deleted and

was the photograph that had been sent at the end of ... to the company Piraeus Real Estate along with other photographs of the property, and which had been posted on the website of Piraeus Leasing without the license plate being discernible, and at that time, the company Piraeus Real Estate requested the immediate deletion of the photograph from its own files as well. Since then, there has been no photograph containing the personal data of the complainant in the company's records, and the photograph, as it was posted, remains to prove its claims that the license plate is not discernible. Regarding the relationship between the companies Piraeus Financial Leasing and Piraeus Real Estate, which has been analyzed above, the company states that in the contract dated ... between them, it is explicitly mentioned that the services described therein were already being provided since ..., and it is evident that the controversial photograph was sent by mistake without the deletion of the license plate number, and in any case, the license plate alone does not constitute an element of identification of a person, considering that the disclosure of the identity of a car owner to any third party with only the license plate as the element is only possible in special cases of legal interest (e.g., due to a traffic accident) and with an application demonstrating the legal interest to a public authority that alone maintains the relevant official records and has access to them.

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Finally, the company Piraeus Real Estate in its letter no. G/EIS/1966/16-03-2023, after the hearing of the memorandum submitted to the Authority, stated that it received from the company CPB Leasing a file containing the complainant's details, which mistakenly included a single photograph, where a car with a clearly visible license plate appeared, which, as the company was informed by CPB, belonged to the complainant. The file with the details of the specific property, including the said photograph, was sent by Piraeus Real Estate only once to a person who showed interest in purchasing it, and it has been established that this file was not sent by the company to any other natural or legal person within or outside the Piraeus Bank Group. At the end of July ..., Piraeus Real Estate, which had never had any relationship with the complainant, immediately deleted the controversial photograph as soon as it was informed by Piraeus Leasing that the complainant requested its deletion and emphasizes that there was never any transfer of personal data between the two companies, but only information regarding properties owned by the Group, and the oversight of the employee of Piraeus Real Estate in sending the said photograph is evidenced by the absence of legal interest, which would be satisfied by such transfer, meaning that Piraeus Bank did not gain any benefit, and it is entirely possible that, given that in the photograph on the website of Piraeus Leasing the license plate was not readable, the employee assumed that it was not readable in the photograph in her hands either. Additionally, the company stated that the complainant, with the extensive reference to the car manufacturer's company and the rarity of the model, essentially admits that the critical issue of the photograph was not the vehicle's license number but the vehicle itself and that any third party did not recognize the vehicle's license plate but the vehicle itself, and thus potentially falsely linked the owner of the car with the owner of the property, while it is not understood how someone could logically proceed to the conclusions.

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the inferences that would lead from the depiction of a sign to conclusions about the social or economic status of the complainant. The Authority, after examining all the elements of the file and those arising from the hearing before the Authority and the submissions of the parties, having heard the rapporteur and the clarifications from the assistant rapporteur, who was present without voting rights, after thorough discussion,

CONSIDERED IN ACCORDANCE WITH THE LAW

1. Whereas, from the provisions of Articles 51 and 55 of the General Data Protection Regulation 2016/679 (GDPR) and Article 9 of Law 4624/2019 (Government Gazette A' 137), it follows that the Authority has the competence to supervise the implementation of the provisions of the GDPR, this law, and other regulations concerning the protection of individuals from the processing of personal data.
2. Whereas, the complainant has submitted a complaint against the company Piraeus Leasing Financial Leases M.A.E. and another complaint with the same content against the company CBP

Leasing Anonymous Company of Financial Leases S.A. (which was renamed to Piraeus Financial Leasing Financial Leases S.A.), however, the company Piraeus Financial Leases Single-Member S.A. – Piraeus Leasing M.A.E. with its letter no. G/EIS/11463/01-11-2022, as the Beneficiary with Establishment company, entered into ... by virtue of universal succession in the pending cases of the two complained companies [Piraeus Financial Leasing (formerly CBP) and Piraeus Leasing], which have ceased to exist. Therefore, the complained company becomes Piraeus Financial Leases Single-Member S.A. and the two complaints are examined together due to their relevance and because they have been submitted by the same complainant against the same now complained company.

3. Whereas, as personal data is understood according to Article 4 paragraph 1 GDPR, any information relating to an identified or identifiable natural person whose identity can be ascertained, directly or indirectly, particularly based on an identification number or based on one or more specific elements that characterize their existence from a physical, biological, psychological, economic, cultural, political, or social perspective. For the identification of the natural person, which can also be indirect, meaning without direct reference to the natural person, all means that can reasonably be used, either by the data controller or by a third party, must be taken into account. According to Decision 41/2017 of the Data Protection Authority, indirect identification can be a function of many different factors. The same elements, the combination of which does not allow the identification of a person in a broad social environment, may lead to full identification within a small social group, where all members know each other. For this reason, in order to examine whether there has been processing of personal data, all those parameters concerning the processing in question must be taken into account, as even the possibility of indirect identification, when not negligible, renders the information, in principle, personal data. Therefore, the collection and storage of a photograph depicting the license plate number of a vehicle, as shown on its sign, in combination with other elements that render the natural person identifiable, even within the context of a small social group, constitutes processing of personal data, as the owner of the vehicle may become recognizable through the license plate number displayed on its sign.

4. Whereas, Article 5 of the GDPR establishes the principles of processing that govern the processing of personal data. Specifically, it is stated in paragraph 1 that personal data, among other things: “a) shall be processed lawfully and fairly in a transparent manner in relation to the data subject (‘lawfulness, fairness, transparency’), b) shall be collected for specified, legitimate purposes and not further processed in a manner that is incompatible with those purposes.”

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in further processing in a manner incompatible with these purposes (...), g) are adequate, relevant, and limited to what is necessary for the purposes for which they are processed (“data minimization”) (...). ”

5. Whereas, according to Article 5(2) of the GDPR, “the data controller is responsible and must be able to demonstrate compliance with the principles of processing set out in paragraph 1 (“accountability”)”.

6. Whereas, regarding the right of access, taking into account Articles 12 and 15 of the GDPR in conjunction with Recital 63 of the GDPR, the data subject has the right to know whether personal data concerning them is being processed, as well as to obtain knowledge of such data, without the need to invoke a legitimate interest, and every data subject should have the right to access personal data that has been collected and concerns them and to exercise this right easily and at reasonable intervals, in order to be aware of and verify the lawfulness of the processing.

7. Whereas, from the evidence in the file, it appears that the company Piraeus Leasing MAE, although in the submissions it provided to the Authority prior to the discussion of the case before the Authority, referred only to the photograph that had been posted on the Piraeus Leasing website and in which the license plate of the complainant's vehicle was not clearly visible, in the hearing and in the post-hearing submission, it referred for the first time to another, second photograph, in which, however, the license plate number of the complainant's vehicle was clearly visible. This second photograph had been stored in the systems of Piraeus Leasing MAE and had been transmitted to Piraeus Real Estate as part of the contractual relationship between the two companies. In the photograph in question, the license plate

number of the parked vehicle is clearly visible, which, combined with the depiction of the house that previously belonged to the complainant's family, could lead and ultimately led to the identification of the complainant by a small circle of individuals. Therefore, Piraeus Leasing MAE was the data controller of the personal data of the complainant and has all the obligations of the data controller provided for by the GDPR and Law 4624/2019.

8. Whereas, the company Piraeus Leasing, within the ... transmitted to the company Piraeus Real Estate, due to the ... contract between the two companies, which explicitly states that the described services had already been provided since ..., the photograph in which the license plate number of the complainant's vehicle was clearly visible. Subsequently, the company Piraeus Real Estate sent the email containing the photograph with the clearly visible license plate number to a third party on Regarding the complainant's claim that they first became aware of this email on ..., this must be rejected, as the series of forwards of the email indicates that they had received it from the third party as early as ..., that is, before submitting the first two complaints to the Authority, in which no relevant reference was made.

9. Whereas, the complainant submitted on ... for the first time a request for deletion of the photograph that had been posted on the Piraeus Leasing website, and following this request, the companies Piraeus Leasing and Piraeus Financial Leasing MAE, as stated, conducted a review of the photographs in their files, identified the photograph in question, deleted it, and informed Piraeus Real Estate to delete it from its files as well.

10. Whereas, the complainant on ... returned exercising the right of access to the company Piraeus Leasing MAE, the company stated that it does not retain in its files a photograph containing the personal data of the complainant, as the photograph in question had been deleted from the companies' files. Thus, the justification for the non-fulfillment of the right of access, according to Piraeus Leasing MAE, is the deletion of the said photograph by it.

11. Whereas, the company Piraeus Leasing MAE has not provided the Authority, in application of the principle of accountability (Article 5(2) GDPR), at any stage of the procedure, any evidence from which the validity of its claim, according to which it deleted the photograph in question from its files, can be demonstrated.

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12. In light of the above, Piraeus Leasing MAE, as the data controller, was obliged to apply the principles governing the processing of the complainant's personal data and to take appropriate technical and organizational measures so that the data is adequate, relevant, and limited to what is necessary for the purposes for which it is processed, in accordance with the principle of data minimization (Article 5(1)(c) of the GDPR). Therefore, the Authority finds that the complained company did not apply the principle of data minimization and did not take appropriate measures to transmit to Piraeus Real Estate the necessary photograph for the execution of the contract between them, without the license plate of the complainant being clearly visible.

13. Regarding the satisfaction of the complainant's right of access, Piraeus Leasing MAE, as the data controller, was obliged to apply the principles governing the processing of the complainant's personal data and to take appropriate technical and organizational measures so that the data is processed lawfully and fairly in a transparent manner concerning the data subject, in accordance with the principle of transparency (Article 5(1)(a) of the GDPR). The data subject has the right to be informed about the processing that their personal data has undergone with full transparency. Therefore, Piraeus Leasing MAE was obliged, when satisfying the complainant's right of access, to inform him that it retains the photograph in its files, although the license plate number is not discernible to substantiate its claim, and correspondingly to inform him about the retention in its files of a second photograph in the past, in which the license plate number was discernible and which it deleted following the submission of the complainant's deletion request. Conversely, Piraeus Leasing MAE never informed the complainant about the second photograph in question, and the first mention of it occurred during the discussion of the complaints before the Authority.

14. The Authority, in light of the above, finds that Piraeus Financial Leasing MAE, as the universal

successor of the complained companies Piraeus Leasing Financial Leases Single Member Anonymous Company and Piraeus Financial Leasing Financial Leases Single Member Anonymous Company, which has absorbed the initially complained CBP Leasing Anonymous Company for Financial Leases, has processed the complainant's personal data by retaining in its files a photograph that contained personal data that could lead to the identification of the complainant, and by transmitting this to another company, violating the principle of data minimization provided for in Article 5(1)(c) of the GDPR, and decides that there is reason to exercise its corrective power under Article 58(2)(h) of the GDPR to impose an administrative fine on the company.

15. Regarding the right of access exercised by the complainant, the Authority, in light of the above, finds that Piraeus Financial Leasing MAE failed to satisfy the right of access exercised by the complainant in violation of Article 15(1) of the GDPR, unjustifiably and unsubstantiated claiming that it had already deleted the photograph in question, and decides that there is reason to exercise its corrective power under Article 58(2)(h) of the GDPR to impose an administrative fine on the company.

16. Furthermore, the Authority took into account the criteria for assessing fines set out in Article 83(2) of the GDPR, the Guidelines "on the application of administrative fines for the purposes of Regulation 2016/679" of the Article 29 Working Party, and the Guidelines 04/2022 of the European Data Protection Board, as well as the factual data of the case under examination and in particular:

- i. The fact that following the deletion request, the complained company promptly deleted the photograph in question and there is no evidence in the file that it was communicated to another natural or legal person other than Piraeus Real Estate.
- ii. The fact that the violation was isolated, meaning that it only affected the complainant as the data subject.

Based on the above, the Authority unanimously decides that administrative sanctions, as mentioned in the operative part, should be imposed on the complained company, in its capacity as the data controller, which are deemed proportionate to the severity of the violations.

FOR THESE REASONS
THE AUTHORITY

A. Finds that the complained company Piraeus Financial Leasing MAE, as the data controller, violated Article 5(1)(c) of the GDPR and imposes on Piraeus Financial Leasing MAE an administrative monetary fine of ten thousand (10,000.00) euros under Article 58(2)(h) of the GDPR.

B. Finds that the complained company Piraeus Financial Leasing MAE, as the data controller, violated Article 15(1) of the GDPR and imposes on Piraeus Financial Leasing MAE an administrative monetary fine of ten thousand (10,000.00) euros under Article 58(2)(h) of the GDPR.

The Deputy President

The Secretary
Georgios Batzalexis
Irini Papageorgopoulou